

8.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR NIZNIK BEHAVIORAL HEALTH RESOURCES INC., A DELAWARE CORPORATION

Tentative Ruling: Motion to be Relieved as Counsel for Defendant Niznik Behavioral Health Resources, Inc. GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Niznik Behavioral Health Resources Inc. shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC	MOTION TO BE RELIEVED AS COUNSEL FOR BELLA MONTE RECOVERY II LLC

Tentative Ruling: No tentative ruling. Motion was withdrawn on 6.29.26.

The court notes that there was a substitution of attorney filed on 6.11.26 indicating that attorney Brandon D. Saxon is the new legal representative for Defendant Bella Monte Recovery II, LLC.

10.

CASE #	CASE NAME	HEARING NAME
CVPS2509119	PADILLA VS TOYOTA MOTOR SALES USA INC.	DEMURRER ON 1ST AMENDED COMPLAINT OF MARY QUITIQUIT PADILLA BY TOYOTA MOTOR SALES USA INC.

Tentative Ruling: No tentative ruling. No hearing on the demurrer.

The court notes that Defendant's Demurrer is captioned as "Demurrer to Plaintiff's Second Amended Complaint" and refers to a SAC multiple times in the motion. In their opposition, Plaintiff references a Second Amended Complaint as well. According to the court's register, following a sustained demurrer to the original complaint on 3.24.26, Plaintiff filed a First Amended Complaint on 4.01.26. No demurrer was filed as to that

operative pleading. A Second Amended Complaint was e-filed by Plaintiff on 5.14.26 and rejected by the clerk's office on 5.20.26 for failure to obtain leave of court. A demurrer to a SAC was filed by Defendant on 6.10.26. Thus, it is unclear whether Defendant is demurring to a document that has not been accepted by the court, or incorrectly referred to a SAC when the demurrer was as to the FAC.

Parties are to be prepared to discuss the above issue.

11.

CASE #	CASE NAME	HEARING NAME
CVPS2603254	LIVRERI VS LIVRERI	DEFENDANT PETER LIVRERI'S GENERAL AND SPECIAL DEMURRER TO PLAINTIFF'S COMPLAINT

Tentative Ruling:

No opposition filed.

Demurrer is SUSTAINED with leave to amend. Plaintiff is directed to file an amended complaint within 30 days, specifically addressing jurisdiction of this court for this type of matter, specifically why this is an unlimited jurisdiction case and also why this matter should not be in probate court.

Case Management Conference remains set for 11.03.26.